

25STCV08294 25STCV08294

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Case Number: 25STCV08294 Hearing Date: September 14, 2026 Dept: 406

AURORA GUERRA RODRIGUEZ,

Plaintiff,

v.

HECTOR JESUS CANO, et

al.,

Defendants.

Case No.: 25STCV08294

Hearing Date: September 14, 2026

[TENTATIVE]

order RE:

defendants' motion for summary judgment

or adjudication

BACKGROUND

On March 21, 2025, Plaintiff Aurora

Guerra Rodriguez filed this action against Defendants Hector Jesus Cano and

Etelvina de Casas. The complaint stems from alleged refusal to accept rent,

uninhabitable conditions, and tenant harassment.

On August 7, 2026, Defendants filed the instant motion for summary judgment or adjudication. Plaintiff filed an opposition on August 27, 2026. Defendants filed a reply on September 3, 2026.

LEGAL STANDARD

The function of a motion for summary judgment or adjudication is to allow a determination as to whether an opposing party cannot show evidentiary support for a pleading or claim and to enable an order of summary dismissal without the need for trial. (*Aguilar v. Atlantic Richfield Co.* (2001) 25 Cal.4th 826, 843.) Code of Civil Procedure section 437c(c) “requires the trial judge to grant summary judgment if all the evidence submitted, and ‘all inferences reasonably deducible from the evidence’ and uncontradicted by other inferences or evidence, show that there is no triable issue as to any material fact and that the moving party is entitled to judgment as a matter of law.” (*Adler v. Manor Healthcare Corp.* (1992) 7 Cal.App.4th 1110, 1119.)

“[T]he party moving for summary judgment bears an initial burden of production to make a prima facie showing of the nonexistence of any triable issue of material fact; if he carries his burden of production, he causes a shift, and the opposing party is then subjected to a burden of production of his own to make a prima facie showing of the existence of a triable issue of material fact.” (*Leyva v. Garcia* (2018) 20 Cal.App.5th 1095, 1101.) To establish a triable issue of material fact, the party opposing the motion must produce “substantial responsive evidence.” (*Sangster v. Paetkau* (1998) 68 Cal.App.4th 151, 166.) Courts “liberally construe the evidence in support of the party opposing summary judgment and resolve doubts concerning the evidence in favor of that party.” (*Dore v. Arnold Worldwide, Inc.* (2006) 39 Cal.4th 384, 389.)

DISCUSSION

“Notice of the motion and supporting papers shall be served on all other parties to the action at least 81 days before the time appointed for hearing.” (Code Civ. Proc., § 437c(a)(2).) “If the notice is served by facsimile transmission, express mail, or another method of delivery providing for overnight delivery, the required 81-day period of notice shall be increased by two court days.” (*Ibid.*) “[T]rial courts do not have authority to shorten the minimum notice period for summary judgment

hearings.” (McMahon v. Superior Court (2003) 106 Cal.App.4th 112, 118.)

Here, Defendants served the motion electronically on August 4, 2026, but set the hearing for September 14, 2026. This fails to account for the 81-day notice period plus 2 court days for electronic service. The Court has no discretion to hear the motion on a shortened notice period.

Defendants argue that Plaintiff waived the notice defect by filing a substantive opposition, citing *Carlton v. Quint* (2000) 77 Cal.App.4th 690. *Quint* reiterated the principle that “the appearance of a party at the hearing of a motion and his or her opposition to the motion on its merits is a waiver of any defects or irregularities in the notice of motion.” (*Id.* at p. 697.) In *Quint*, the plaintiff challenged the propriety of service under Code of Civil Procedure section 1011. (*Ibid.*) However, the court found that the plaintiff received the then-required 28 days of notice prior to the summary judgment hearing. (*Id.* at p. 696.)

Unlike *Quint*, this case does not involve an irregularity in service. Instead, the issue is the shortening of the mandatory notice period. Subsequent cases have distinguished *Quint* on this ground. (See *Urshan v. Musicians' Credit Union* (2004) 120 Cal.App.4th 758, 768 [“the present case does not involve an alleged defect with the movant's service of notice, as was the case in *Quint*. It instead involves an unauthorized order by the trial court shortening time to notice the summary judgment hearing”]; *Robinson v. Woods* (2008) 168 Cal.App.4th 1258, 1264 [same]; *Boyle v. CertainTeed Corp.* (2006) 137 Cal.App.4th 645, 651 [same].) *Quint* is further distinguishable because the plaintiff in that case did not “request a continuance of the summary judgment hearing or contend he was prejudiced by inadequate notice or service.” (*Quint*, *supra*, 77 Cal.App.4th at p. 697.) Here, Plaintiff does both.

Courts have repeatedly held that a trial court may not shorten the notice period absent the parties' express, affirmative consent. (See *McMahon*, *supra*, 106 Cal.App.4th at p. 118; *Robinson*, *supra*, 168 Cal.App.4th at p. 1264; *Urshan*, *supra*, 120 Cal.App.4th at p. 768.) Waiver of the notice period cannot be inferred from silence. (*Ibid.*) Nor can waiver be implied where a plaintiff objects to the shortened notice period and then defends on the merits. (See *Boyle*, *supra*, 137

Cal.App.4th at p. 650 [“No waiver may be implied where, as here, a party alleging error has made its objection and then acted defensively to lessen the impact of the error”].) Here, Plaintiff expressly objects to the shortened notice period. This objection is not waived just because Plaintiff also addresses the merits in case the Court rejects his notice argument.

In sum, the motion must be denied because Defendants failed to comply with the mandatory notice period.

CONCLUSION

Defendants’ motion for summary judgment or adjudication is DENIED.